

		Plaintiff to give notice.
8	24/7 Family Homecare, Inc. v. Martinezgarcia	Defendants Ernesto Martinez Garcia and Miguel Martinez Cruz's Motion to Strike Punitive Damages from Plaintiffs' Complaint is DENIED. The Court notes that Plaintiff does not seek punitive or exemplary damages from Defendant Cruz. Thus, Cruz's Motion is denied. Garcia contends that allegations of intoxication, statutory violations, or conclusory labels, without supporting factual details, are insufficient to support Plaintiffs 24/7 Family Homecare, Inc., and Shear Perfection Pet Salon, Inc.'s punitive damage allegations. The Court rejects Garcia's contentions. "[T]he act of operating a motor vehicle while intoxicated may constitute an act of 'malice' under section 3294 if performed under circumstances which disclose a conscious disregard of the probable dangerous consequences." (<i>Taylor v. Superior Court of Los Angeles County</i> (1979) 24 Cal.3d 890, 892; see <i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 158 [recognizing driving while intoxicated amounts to a conscious disregard of the safety of others, which is sufficient to support punitive damages]; see <i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 160 ["by the time <i>Taylor</i> was decided, the majority rule in other jurisdictions considering the issue was to allow punitive damages in drunk driving case"].) While the defendant in <i>Taylor</i> was an alcoholic who had habitually driven while under the influence of alcohol, the Supreme Court held, "while a history of prior arrests, convictions and mishaps may heighten the probability and foreseeability of an accident, <i>we do not deem these aggravating factors essential prerequisites to the assessment of punitive damages in drunk driving cases.</i>" (<i>Taylor v. Superior Court of Los Angeles County</i> (1979) 24 Cal.3d 890, 896, italics added.) The Supreme Court had "no difficulty concluding that [the pleadings] contain sufficient allegations upon which it may reasonably be concluded that defendant consciously disregarded the safety of others. <i>There is a very commonly understood risk which attends every motor vehicle driver who is intoxicated. [Citation.] One who wilfully consumes alcoholic beverages to the point of intoxication, knowing that he thereafter must operate a motor vehicle, thereby combining sharply impaired physical and mental faculties with a vehicle capable of great force and speed, reasonably may be held to exhibit a conscious disregard of the safety of others. The effect may be lethal whether or not the driver had a prior history of drunk driving incidents.</i>" (<i>Id.</i> at pp. 896-897, italics added; accord, <i>People v. Watson</i> (1981) 30 Cal.3d 290, 300-301.) This is precisely what Plaintiffs allege in paragraph 11 of their Complaint. "The allowance of punitive damages in such cases may well be appropriate because of another reason, namely, to deter similar future conduct, the 'incalculable cost' of which is well documented. [Citation.] Section 3294 expressly provides that punitive damages may be recovered 'for the sake of example.'" (<i>Taylor v. Superior Court of Los</i>

		<i>Angeles County</i> (1979) 24 Cal.3d 890, 897; accord, <i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 155-156; see <i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 155 [the imposition of punitive damages is a legitimate means for furthering the goal of deterring drunk driving].) In his Motion to Strike, Garcia cites to <i>Taylor</i>, as well as <i>Dawes v. Superior Court</i> (1980) 111 Cal.App.3d 82, for the proposition that Plaintiffs must state facts that demonstrate a conscious disregard of the probable dangerous consequence of the defendant's conduct, rather than merely the allegation that the defendant was intoxicated. Garcia also argues that the allegation that he has been, or will be, convicted of a felony violation of the Vehicle Code is speculative, such that it does not constitute an ultimate fact that supplies the factual basis required to plead punitive damages. However, as the Supreme Court held in <i>Taylor</i>, <i>Peterson</i> and <i>Watson</i>, Garcia's operation of a motor vehicle while allegedly intoxicated, in and of itself, constitutes malice, particularly since his actions resulted in significant property damage. (<i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 155-156, 158; <i>People v. Watson</i> (1981) 30 Cal.3d 290, 300-301; <i>Taylor v. Superior Court of Los Angeles County</i> (1979) 24 Cal.3d 890, 892, 896-897.) Further, Plaintiffs allege in their Complaint that Garcia drove the subject vehicle "while not holding a valid driver's license," yet he was "so intoxicated that [he] reportedly caused collisions to occur with three (3) parked vehicles and reportedly told the investigating officer that [he was] unsure how many vehicles [he] hit." (Complaint, ¶ 10.) Taken together, these allegations state facts that demonstrate Garcia's conduct was in conscious disregard of the probable dangerous consequences of driving while intoxicated. In any event, and as discussed, the simple fact a defendant becomes intoxicated, and then chooses to drive in that state, is sufficient to support an award of punitive damages. (<i>Peterson v. Superior Court</i> (1982) 31 Cal.3d 147, 163; see <i>Ramona Manor Convalescent Hosp. v. Care Enters.</i> (1986) 177 Cal.App.3d 1120, 1141-1142 [recognizing courts approve punitive recoveries against drunk drivers, even though a drunk driver does not know the specific identity of his victim].) Given the foregoing, the Court can treat Garcia's act of driving while under the influence as being malicious or oppressive, as he consciously disregarded the safety of others by driving while under the influence. (See <i>Taylor v. Superior Court of Los Angeles County</i> (1979) 24 Cal.3d 890, 896-897 [one who willfully consumes alcoholic beverages to the point of intoxication, and then operates a motor vehicle, "reasonably may be held to exhibit a conscious disregard of the safety of others," and "the effect may be lethal whether or not the driver had a prior history of drunk driving incidents"].) The Court also disagrees with Garcia's contention that Plaintiff has not alleged sufficient facts to support his punitive damage allegations. (See <i>Monge v. Superior Court</i> (1986) 176 Cal.App.3d 503, 510 [necessary facts can be stated as ultimate facts or conclusions of law, as long as
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